

IN THE COURT OF APPEAL (CIVIL DIVISION)
ON APPEAL FROM THE EMPLOYMENT APPEAL TRIBUNAL

BETWEEN:

DR SARAH THORNTON

Appellant

- and -

GLOBALTECH SOLUTIONS LTD

Respondent

RESPONDENT'S SKELETON ARGUMENT

10 JANUARY 2025

References:

- (1) To the Core Bundle are in the form [CB/page]
- (2) To the ET Decision [2024] ET 2402847 are in the form [ET/para]

INTRODUCTION

1. The Respondent respectfully contends that there was no error of law in either the Employment Tribunal's or the Employment Appeal Tribunal's judgments.
2. Taking the Appellant's four grounds in turn:
 - (a) The ET correctly applied the legal test for qualifying disclosure under section 43B ERA 1996;
 - (b) The temporal proximity between the HSE report and restructuring is coincidental;
 - (c) The ET was entitled to accept the Respondent's evidence regarding the redundancy process;
 - (d) The ET's finding on public interest was a finding of fact open to it on the evidence.

FACTUAL BACKGROUND

3. GlobalTech Solutions Ltd is a research company specialising in polymer chemistry, employing approximately 180 staff [CB/28-30].
4. Dr Thornton's role focused on legacy polymer technologies, a sector which has experienced significant decline as the industry has moved towards sustainable alternatives [ET/8-12].
5. GlobalTech took Dr Thornton's concerns seriously and responded appropriately:
 - (a) An internal review was initiated on 15 February 2024;
 - (b) Enhanced training programmes were implemented on 15 March 2024;
 - (c) A written response was provided on 3 May 2024.
6. The HSE investigation confirmed that no enforcement action was required as GlobalTech's protocols were compliant [CB/156-158].
7. The strategic review commenced in February 2024, as evidenced by board minutes dated 28 February 2024 [CB/89-92].

RESPONSE TO GROUND ONE

8. The ET correctly directed itself as to the law at [ET/65], noting that disclosure must convey information with sufficient factual content.
9. The ET's finding that Dr Thornton's communications did not meet this threshold was a finding of fact open to it on the evidence.
10. This analysis is consistent with *Cavendish Munro v Gedduld* [2010] ICR 325, distinguishing information from allegations or opinions.

RESPONSE TO GROUND TWO

11. The contemporaneous documentation demonstrates that the strategic review pre-dated Dr Thornton's external disclosure:
 - (a) Board minutes dated 28 February 2024 record approval of a strategic review [CB/89];
 - (b) An email from the CEO dated 15 March 2024 refers to the ongoing restructuring [CB/94];
 - (c) A consultant's report dated 30 April 2024 recommended consolidation [CB/102].
12. As established in *Fecitt v NHS Manchester* [2012] IRLR 64, the burden remains on the claimant to show that the protected disclosure was the principal reason.

RESPONSE TO GROUND THREE

13. The ET's finding that the redundancy process was genuine and fair should not be disturbed on appeal.
14. As held in *Safeway Stores v Burrell* [1997] ICR 523, the selection criteria need not prioritise length of service.

RESPONSE TO GROUND FOUR

15. The ET's finding on public interest was supported by the evidence that:
 - (a) Dr Thornton's concerns related to her personal working environment;
 - (b) The HSE found no regulatory non-compliance;
 - (c) Dr Thornton acknowledged personal motivation in her evidence.

CONCLUSION

16. The Respondent respectfully invites the Court to:
 - (a) Dismiss the appeal in its entirety;
 - (b) Uphold the decisions of the ET and EAT;
 - (c) Award costs against the Appellant if appropriate.

JONATHAN BLACKWOOD KC

ANNA OKAFOR

Henderson Cole Chambers

Note: This is synthetic data created for training purposes only.